

22STCP01104 22STCP01104

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-17

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Case Number: 22STCP01104 Hearing Date: September 17, 2026 Dept: 25

HEARING DATE: Thurs., September 17, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Maricopa

Meadows Homeowners Association v. Coopwood

APP. FILED: 03-25-22

CASE NUMBER: 22STCP01104

NOTICE: OK

PROCEEDINGS: MOTION

OF MARICOPA MEADOWS HOMEOWNERS ASSOCIATION FOR ATTORNEYS' FEES AND COSTS

MOVING PARTY: Plaintiff

Maricopa Meadows Homeowners Association

RESP. PARTY: None

MOTION FOR ATTORNEY FEES AND COSTS

(Code Civ. Proc., § 685.040)

TENTATIVE RULING:

The Court GRANTS Maricopa Meadows Homeowners Association's motion for attorney fees and costs in the total amount of \$1,454.73, comprising \$1,125.00 in attorney fees and \$329.73 in costs.

Maricopa is to give notice.

SERVICE:

☒ [X]

Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ [X]

Correct Address (CCP §§ 1013, 1013a) OK

☒ [X] 16/21 Court Days Lapsed

(CCP §§ 12c, 1005(b)) OK

OPPOSITION: None filed as of September
11, 2026 ☐ [] Late ☒ [X] None

REPLY: None filed as
of September 11, 2026 ☐ []
Late ☒ [X] None

ANALYSIS:

In March 2022, the Court
domesticated an Arizona judgment in favor of Maricopa Meadows Homeowners
Association and against Chanel Coopwood.
Maricopa now moves for an award of attorney fees and costs incurred
post-judgment.

Attorney fees are allowable as costs
when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd.
(a)(10).) Code of Civil Procedure
section 685.040 entitles a judgment creditor to reasonable and necessary costs
of enforcing a judgment, including attorney fees, if the underlying judgment
includes a fee award. The judgment
creditor may claim those costs through a noticed motion before the judgment is
satisfied in full, but not later than two years after the costs have been
incurred. (Id., § 685.080, subd.
(a).)

Notice of Maricopa's motion was served properly on judgment debtor Coopwood. The judgment provides for "all costs and attorney fees incurred by [Maricopa] after submission of [the] judgment for entry by the Court in collecting the amounts listed in [the] Judgment." The judgment has not yet been satisfied, and the fees and costs sought by Maricopa were incurred between June 4, 2024 and now.

The Court's objective is to award those fees at the fair-market value for the attorneys' work. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) That can be done by multiplying the number of hours the attorneys reasonably expended by a reasonable hourly rate. (*Id.* at p. 1132, 1134.) Maricopa seeks attorney fees based on its counsel, B. Austin Baillio's, hourly rate \$375.00 per hour until January 1, 2025, after which the rate increased to \$395.00 per hour, with some services performed for a flat fee; counsel Garren R. Laymon's work performed for a flat fee of \$500.00; and law clerk Elijah Swolgaard's work performed for a flat fee of \$400.00. With his declaration, Baillio provides a ledger for this matter, with itemized hours demonstrating the specific tasks completed and the fees thereby incurred. In total, the ledger reflects \$1,283.00 in fees, consisting of three hours of total work, including 0.4 hours for attending this hearing. Both the rates and number of hours expended are reasonable—minus the time spent remotely attending this hearing on an unopposed motion. The Court deducts that time, valued at \$158.00, for a total fee award of \$1,125.00.

Maricopa also requests costs in the amount of \$329.73, which includes electronic monitoring fees, filing fees, fees for official certification, and recording fees. This amount is supported by the ledger provided by Baillio.

Accordingly, the Court GRANTS Maricopa's motion for attorney fees and costs in the total amount of \$1,454.73, comprising \$1,125.00 in attorney fees and \$329.73 in costs.

Maricopa is to give notice.